

Safety Lab Aero EULA (Revised Draft, 1 Sep 2026)

Safety Lab Aero — End User License Agreement

Revised draft — 1 September 2026 (marked changes for counsel review)

Base text extracted from the in-product EULA (site/eula_modal.js). This draft rebalances several seller-favorable terms and adds an escrow clause and an export-control / cloud-AI clause for enterprise and aerospace customers (e.g., Radia). It is a drafting aid, not legal advice — have counsel review before use.

Summary of Changes (1 Sep 2026)

- **[NEW] Section 14 — Source Code Escrow:** release of source to the customer on Licensor insolvency/cessation or an uncured failure to support.
- **[NEW] Section 15 — Export Control; Cloud AI and Uploaded Reference Content:** ITAR/EAR posture for the Teams assistant and customer-uploaded standards (the project-level ITAR block does NOT automatically extend to those channels).
- **[REVISED] Section 10A — Indemnification (now mutual):** adds a Licensor IP-infringement indemnity (defend / procure / modify / refund) alongside the existing Licensee indemnity, with standard notice-and-control conditions.
- **[REVISED] Section 10 — Limitation of Liability:** the fee-based cap now carves out the IP indemnity, breach of the confidentiality/data obligations, and gross negligence / willful misconduct / fraud.
- **[REVISED] Section 11 — Termination:** material-breach termination now requires 30 days' written notice and a chance to cure, and is mutual (immediate termination kept only for Section 3 / IP misuse and uncured non-payment).
- **[REVISED] Section 13 — Amendment:** material adverse changes need 30 days' notice, don't take effect mid-term over the customer's objection, and cannot unilaterally alter a signed order form.
- **[REVISED] Section 13 — Assignment:** now mutual, with a successor / M&A exception for both parties.
- **[REVISED] Section 13 — Entire Agreement:** a signed order form or master agreement controls over any conflicting EULA term.
- **[CONFIRM] Contracting entity:** the Agreement names "*Safety Lab Aero, Inc., a Delaware corporation.*" Your Microsoft Partner Center record shows "*Safety Lab Aero,*" *Colorado.* Confirm the exact legal name and state of incorporation and make every document consistent before signing.

This End User License Agreement (the "Agreement") is a binding legal contract between you, whether an individual or the entity you represent (the "Licensee," "you," or "your"), and Safety Lab Aero, Inc., a Delaware corporation ("Licensor," "we," "us," or "our"). The Agreement governs your access to and use of the Safety Lab Aero software application, the Safety Lab Aero web service hosted at safetylabaero.com, the application source code distributed in object or any

other form, and all related documentation, templates, libraries, sample projects, and updates (collectively, the “Software”).

By creating an account, signing in, accessing the Software, installing any part of the Software, or using the Software in any manner, you (a) accept and agree to be bound by every term of this Agreement and (b) represent that you have the legal capacity to enter into this Agreement and, if you are entering into this Agreement on behalf of an entity, that you have the authority to bind that entity. If you do not agree to every term of this Agreement, you must not access or use the Software.

1. Definitions

For the purposes of this Agreement:

“Account” means the credentialed access to the Software registered to a specific email address.

“Authorized User” means an individual to whom you have provided an Account and who is permitted by you to use the Software on your behalf.

“Customer Data” means any data, files, projects, analyses, requirements, templates, attachments, or other content that the Licensee submits to, uploads to, or generates within the Software.

“Documentation” means the written and online materials describing the operation and features of the Software, as updated by us from time to time.

“Output” means any document, report, file, export, or artifact generated by or through the Software, including without limitation Functional Hazard Assessments, Fault Tree Analyses, Common-Cause Analyses, requirements lists, and certification artifacts.

“Subscription Tier” means the level of access you have selected and for which you have paid the applicable fee, as further described in Section 4.

“Term” has the meaning set forth in Section 11.

2. License Grant

Subject to your continuous compliance with this Agreement and your timely payment of all applicable fees, Licensor hereby grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license, during the Term, to access and use the Software solely for your own internal business operations.

The license granted under this Agreement is a license to use the Software as a service. No copy of the Software in source form, no copy of the Software’s proprietary algorithms or trade secrets, and no copy of any patented invention embodied in the Software is granted by this Agreement.

3. Restrictions

You shall not, and shall not permit any Authorized User or any third party to: (a) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code, internal

algorithms, or trade secrets of the Software, except to the limited extent that applicable law expressly permits such activity notwithstanding this prohibition; (b) copy, modify, translate, or create derivative works based on the Software, the Documentation, or the Output, except as expressly authorized in this Agreement; (c) rent, lease, lend, sell, sublicense, assign, distribute, publish, transfer, or otherwise make the Software available to any third party, including without limitation by means of timesharing, service bureau, software-as-a-service, application service provider, or managed-service offerings; (d) circumvent, disable, or interfere with security-related features of the Software, including the paywall, subscription tier enforcement, account verification, or rate-limiting mechanisms; (e) use the Software in any manner intended to compete with the Software, including without limitation by training, fine-tuning, or otherwise creating machine-learning models from the Software's prompts, outputs, generated documents, or user interface; (f) use the Software in violation of any applicable law, regulation, or third-party right, including without limitation export-control laws, privacy laws, intellectual-property rights, and the International Traffic in Arms Regulations or the Export Administration Regulations; (g) remove, alter, or obscure any proprietary notice, copyright, trademark, or attribution marking displayed on or within the Software, the Documentation, or the Output; (h) use the Software to generate certification artifacts for submission to a regulatory authority without first satisfying yourself, through human review by qualified personnel, that the Output is accurate and complete. (i) clone, mirror, reproduce, replicate, re-create, re-implement, port, or emulate the Software or any of its functionality, workflows, data schemas, prompt designs, or user interface, whether by manual or automated means and whether or not using Licensor's code; (j) scrape, harvest, or systematically capture the Software's user interface, prompts, templates, schemas, or Output, or use the Software, its Output, or its observed behavior to design, train, develop, or benchmark any product, model, or service that competes with or is substantially similar to the Software.

4. Subscription Tiers and Fees

The Software is offered under tiered subscription plans. The current tiers and associated fees are published at safetylabaero.com and may be updated from time to time. The tiers available as of the Effective Date are: EDU 014 free 014 restricted to verified academic addresses for individual coursework, thesis work, and research; not for production certification programs. Pro 014 \$1,500 per seat per month 014 production use by individual safety engineers and small teams. Pro+ 014 \$2,500 per seat per month 014 production use with managed AI proxy access, expanded token allowance, and priority support. Enterprise 014 custom 014 multi-seat deployments with custom contracting terms; contact Licensor for quotation.

Domain-based complimentary access may be granted in writing to specific organizations identified as strategic partners. Such complimentary access is non-transferable, may be revoked at Licensor's discretion, and confers no perpetual right.

All fees are stated in United States dollars and are exclusive of taxes, duties, and bank-transfer fees. You are responsible for all taxes (other than taxes on Licensor's net income) and bank-transfer fees associated with your payments. Payments are processed by Licensor's payment processor (currently Stripe) and are non-refundable except as expressly stated in Section 11.

A ten-day free trial is offered to new accounts upon first signup. No payment method is required for the trial and no charge is made when it ends. At the end of the trial period, access

to the Software is suspended until you subscribe to a paid tier; your Customer Data is retained and becomes accessible again on subscription. Licensor may extend a trial in writing at its discretion. Paid subscriptions renew monthly until canceled; cancellation can be effected through your account settings or by written notice to Licensor and takes effect at the end of the current paid billing period.

5. Customer Data; Confidentiality

You retain all right, title, and interest in and to your Customer Data. You hereby grant Licensor a limited, non-exclusive, non-sublicensable license to host, store, process, and transmit your Customer Data solely as required to provide the Software to you and to perform Licensor's obligations under this Agreement.

Licensor will treat your Customer Data as confidential information. Licensor will not access, view, or use your Customer Data for any purpose other than (i) providing the Software to you, (ii) responding to your support requests, (iii) maintaining the security and integrity of the Software, or (iv) complying with applicable law or a valid order of a court of competent jurisdiction, or (v) providing the in-product personalization described in the Personalization; No Model Training paragraph below.

Personalization; No Model Training. Licensor does not use your Customer Data to train or fine-tune any machine-learning model. No model weights are created, updated, or adjusted using your Customer Data, whether by Licensor or, by contractual commitment, by Licensor's language-model providers.

The Software's AI features personalize their drafting by retrieval, not by training: your edits and corrections to AI-generated drafts are recorded in a correction store held locally in your own browser, and excerpts from that store may be included in AI requests made on your behalf — solely to match your drafting conventions, and solely in requests serving your own Account. That store never serves any other customer. It is excluded entirely from projects flagged as export-controlled, in both directions: corrections captured under an export-controlled project are never retrieved, and no corrections are retrieved while an export-controlled project is open. The store can be counted, capped (including set to zero), or cleared entirely at any time through the Software's AI settings.

AI inference is conducted on a per-request basis through identified language-model providers, the identity of which is disclosed in the Documentation; those providers do not retain or use your prompts or outputs for their own model training.

Should Licensor in the future wish to use any Customer Data for model training, it will do so only under a separate, express, opt-in written agreement; nothing in this Agreement grants that right, and declining any such request will not affect your access to any feature of the Software.

You are solely responsible for the accuracy, legality, and content of your Customer Data. You represent and warrant that you have all rights necessary to submit your Customer Data to the Software and that your Customer Data does not infringe any third-party right.

6. AI-Assisted Authoring

The Software includes AI-assisted authoring features that invoke a large language model to draft prose content within certification documents. You acknowledge and agree that:

The Software constrains the AI to operate only over your project data and forbids the AI from fabricating safety-critical claims (failure conditions, severity classifications, Development Assurance Level allocations, quantitative reliability values, regulatory citations) not present in your project data.

Notwithstanding such constraints, large language models can produce inaccurate, incomplete, or inappropriate output, and the AI's output requires your review and acceptance before it is incorporated into any document.

The Software's user interface enforces a per-section human disposition gate, requiring you to explicitly Accept, Edit, or Discard each AI-generated section before document finalization. The disposition gate is a feature of the Software, but the responsibility for the accuracy of dispositioned content is yours.

Licensor disclaims any warranty regarding the accuracy of AI-generated content. The AI output is provided as a drafting aid, not as a substitute for engineering judgment.

7. Intellectual Property

The Software, the Documentation, all related materials, all enhancements and improvements, all proprietary algorithms (including without limitation Binary Decision Diagram fault-tree mathematics with Common-Cause Failure integration, top-down Development Assurance Level allocation, AutoReq requirement generation, V&V Mirror Tree divergence detection, and AI-Constrained Cert Doc Authoring), all underlying methodologies, and all trademarks ("Safety Lab Aero," "AutoReq," "DALgebra," "V&V Mirror," and the Safety Lab Aero logo) are and shall remain the sole property of Licensor and its licensors.

The Software incorporates certain patent-pending inventions; nothing in this Agreement grants you any license, express or implied, under any patent of Licensor.

Aside from the limited license granted in Section 2, Licensee acquires no right, title, or interest in or to the Software, the Documentation, or any portion thereof, by virtue of this Agreement.

Any unauthorized copying, reproduction, duplication, replication, decompilation, or re-implementation of the Software, its source or object code, its user interface, or its underlying methods and algorithms constitutes both a material breach of this Agreement and an infringement of Licensor's intellectual-property rights, and will be pursued to the fullest extent permitted by law, including injunctive relief, recovery of damages and Licensor's costs and attorneys' fees, and referral for civil and, where applicable, criminal prosecution.

The Software embodies valuable trade secrets and confidential and proprietary information of Licensor, including without limitation its source and object code, architecture, data schemas, prompt designs, deterministic algorithms, and user-interface workflows, all of which derive independent economic value from not being generally known. Licensee shall hold the Software and its non-public elements in strict confidence, shall use no less than a reasonable degree of

care to protect them, and shall not disclose them to any third party. No right or license is granted to Licensee by implication, estoppel, exhaustion, or otherwise, except for the limited license expressly stated in this Agreement.

Licensee acknowledges that any actual or threatened breach of Section 3 or this Section 7 would cause Licensor irreparable harm for which monetary damages would be an inadequate remedy, and Licensor shall therefore be entitled to immediate injunctive and other equitable relief to prevent or restrain such breach, without the necessity of posting a bond or proving actual damages, in addition to all other remedies available at law or in equity, all of which are cumulative. Licensor may recover its actual damages, Licensor's lost profits, disgorgement of Licensee's profits, statutory damages where available, and its costs and reasonable attorneys' fees, and may refer any willful infringement or misappropriation for civil action and, where applicable, criminal prosecution, including under the United States Copyright Act (17 U.S.C. 506), the Defend Trade Secrets Act and Economic Espionage Act (18 U.S.C. 1831 through 1839), and the Computer Fraud and Abuse Act (18 U.S.C. 1030).

Upon reasonable notice, Licensor may audit Licensee's use of the Software to verify compliance with this Agreement, and Licensee shall reasonably cooperate with any investigation of suspected infringement or misappropriation. Licensee shall indemnify, defend, and hold harmless Licensor and its licensors from and against any loss, liability, damage, cost, or expense (including reasonable attorneys' fees) arising out of or relating to Licensee's breach of Section 3 or this Section 7 or any infringement or misappropriation of Licensor's intellectual property. The obligations of Section 3 and this Section 7 survive termination of this Agreement.

8. Output Ownership

You own the Output you generate using the Software, including without limitation Functional Hazard Assessments, fault trees, requirements lists, certification documents, and exported data files, provided that: (a) you have lawfully provided the input data to the Software; (b) the Output incorporates no copyrighted material owned by Licensor or a third party that is not expressly licensed to you under this Agreement; and (c) you are responsible for the human review of the Output prior to its use in any regulatory submission or safety-critical decision.

You grant Licensor a non-exclusive, royalty-free license to use anonymized, aggregated statistics about Output (for example, distribution of failure-condition severities, fault-tree size, or certification basis selections) for the purpose of improving the Software, provided that no Customer Data may be identified, extracted, or reconstructed from such statistics. This paragraph does not permit any use of Customer Data for model training or fine-tuning, which Section 5 excludes.

9. Warranties and Disclaimers

Licensor warrants that, during the Term, the Software will perform substantially in accordance with the Documentation, when used in accordance with this Agreement.

EXCEPT FOR THE EXPRESS WARRANTY IN THE PRECEDING PARAGRAPH, THE SOFTWARE, THE DOCUMENTATION, AND ALL OUTPUT ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT ANY WARRANTY OF ANY KIND. LICENSOR EXPRESSLY DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE, INCLUDING

WITHOUT LIMITATION THE WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. LICENSOR DOES NOT WARRANT THAT THE SOFTWARE WILL OPERATE UNINTERRUPTED OR ERROR-FREE, THAT DEFECTS WILL BE CORRECTED, OR THAT THE SOFTWARE IS FREE OF VIRUSES OR OTHER HARMFUL CODE.

LICENSOR DOES NOT WARRANT THAT THE OUTPUT IS SUITABLE FOR SUBMISSION TO ANY REGULATORY AUTHORITY WITHOUT INDEPENDENT REVIEW BY QUALIFIED HUMAN PERSONNEL. THE SOFTWARE IS A TOOL TO ASSIST HUMAN ENGINEERS, NOT A SUBSTITUTE FOR ENGINEERING JUDGMENT.

9A. Assumption of Risk; Sole Responsibility for Safety and Certification

You acknowledge and agree that the Software is a decision-support and drafting aid only. The Software is not a certifying authority, is not a Designated Engineering Representative or delegated organization, and does not constitute engineering, airworthiness, legal, or other professional advice, a certification, or an approval. No Output is a determination of safety, airworthiness, or regulatory compliance.

You are solely responsible for (a) all engineering, safety, airworthiness, design, certification, manufacturing, operational, and maintenance decisions; (b) the independent review, verification, and validation of all Output by qualified human personnel who assume professional responsibility for it; and (c) compliance with all applicable laws, regulations, and airworthiness requirements.

To the maximum extent permitted by applicable law, you assume all risk arising from your access to or use of the Software and any Output, including without limitation any use in or affecting the design, analysis, certification, manufacture, operation, or maintenance of any aircraft, system, product, or process. Licensor shall not be responsible or liable for any decision made or action taken in reliance on the Software or any Output, or for any death, personal injury, property damage, loss, delay, or certification or regulatory consequence arising therefrom.

10. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL LICENSOR BE LIABLE TO LICENSEE OR ANY THIRD PARTY FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES, OR FOR ANY LOSS OF PROFITS, REVENUE, GOODWILL, DATA, USE, OR OTHER INTANGIBLE LOSSES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

LICENSOR'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT, FROM ALL CAUSES OF ACTION AND ALL THEORIES OF LIABILITY, SHALL BE LIMITED TO THE TOTAL AMOUNT OF FEES PAID BY LICENSEE TO LICENSOR UNDER THIS AGREEMENT DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE LIABILITY.

The foregoing limitations apply notwithstanding any failure of essential purpose of any limited remedy and to the maximum extent permitted by applicable law.

[REVISED] Exceptions to the cap. The monetary cap in this Section 10 does not apply to, and the following are excluded from it: (a) Licensor's indemnification obligations under Section 10A (Licensor IP Indemnity); (b) damages arising from Licensor's breach of its confidentiality or data-protection obligations under Section 5; and (c) liability arising from a party's gross negligence, willful misconduct, or fraud. The mutual exclusion of indirect and consequential damages in the first paragraph of this Section 10 continues to apply to all claims to the maximum extent permitted by applicable law.

The limitations and exclusions in this Section 10 apply to Licensor and to its affiliates and their respective officers, directors, employees, agents, and licensors (together, the "Licensor Parties"), and apply to all claims and theories of liability, including any arising from or relating to any Output or any safety-critical use. For any license or access provided at no charge, the Licensor Parties' total aggregate liability shall not exceed one hundred United States dollars (US\$100).

10A. Indemnification [REVISED]

Licensor IP Indemnity [NEW]. Licensor shall defend Licensee against any third-party claim alleging that the Software, as provided by Licensor and used in accordance with this Agreement, infringes a United States patent, copyright, or trademark, or misappropriates a trade secret, and shall indemnify Licensee for damages and reasonable attorneys' fees finally awarded against Licensee (or agreed by Licensor in settlement) on such a claim. If the Software becomes, or in Licensor's reasonable opinion is likely to become, the subject of such a claim, Licensor may at its option and expense (i) procure for Licensee the right to continue using the Software, (ii) modify or replace it so it is non-infringing while remaining substantially equivalent, or (iii) if neither (i) nor (ii) is commercially reasonable, terminate the affected license and refund any pre-paid, unused fees. This obligation does not apply to a claim arising from (a) Licensee's Customer Data or content Licensee supplies; (b) modification of the Software by anyone other than Licensor; (c) combination of the Software with products, data, or processes not provided by Licensor, where the claim would not have arisen but for the combination; or (d) use of the Software outside the scope of this Agreement. This paragraph states Licensor's entire liability, and Licensee's exclusive remedy, for third-party intellectual-property claims.

Licensee Indemnity. You shall indemnify, defend, and hold harmless the Licensor Parties from and against any and all claims, demands, suits, actions, losses, liabilities, damages, judgments, settlements, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to (a) your access to or use of the Software or any Output; (b) any engineering, safety, airworthiness, design, certification, manufacturing, operational, or maintenance decision made or action taken by you or any third party, whether or not in reliance on the Software or Output; (c) any death, personal injury, or property damage arising from or connected to any aircraft, system, product, or process that you or a third party designed, analyzed, certified, manufactured, operated, or maintained; (d) your Customer Data or your violation of any law or third-party right; or (e) your breach of this Agreement. This indemnity is in addition to, and not in limitation of, the indemnity in Section 7, and survives termination.

Indemnification conditions [NEW]. The party seeking indemnity shall give the indemnifying party prompt written notice of the claim, sole control of its defense and settlement (provided that no settlement imposing a non-indemnified liability, obligation, or admission on the

indemnified party will be entered without that party's prior written consent, not to be unreasonably withheld), and reasonable cooperation at the indemnifying party's expense. The indemnified party may participate in the defense with its own counsel at its own expense.

11. Term and Termination

This Agreement commences on the date you first access the Software and continues until terminated as set forth herein (the "Term").

Either party may terminate this Agreement for convenience by providing thirty (30) days' written notice to the other party. Licensee may also terminate at any time by canceling its subscription through the account settings; cancellation takes effect at the end of the current paid billing period and no pro-rated refund of pre-paid fees is provided except as required by applicable law.

[REVISED] Either party may terminate this Agreement if the other party materially breaches it and does not cure the breach within thirty (30) days after receiving written notice describing it. Notwithstanding the foregoing, Licensor may suspend or terminate the Software immediately on written notice for Licensee's breach of the license restrictions in Section 3 or any infringement or misappropriation of Licensor's intellectual property under Section 7, and may suspend for non-payment that remains uncured ten (10) days after written notice.

Upon termination: (i) Licensee's right to access the Software ceases immediately; (ii) Licensor will retain Customer Data for a period of ninety (90) days following termination to permit Licensee to export the data, after which Licensor may delete the Customer Data; (iii) Sections 3, 5, 7, 8, 9, 9A, 10, 10A, 12, 13, 14, and 15 survive termination.

12. Export Compliance

The Software may be subject to United States export-control laws, including without limitation the Export Administration Regulations (EAR), 15 C.F.R. Parts 730 through 774, administered by the United States Department of Commerce. You shall not export, re-export, transfer, or use the Software in violation of any applicable export-control law.

Certain projects within the Software may contain data subject to the International Traffic in Arms Regulations (ITAR), 22 C.F.R. Parts 120 through 130. If you flag a project as ITAR-controlled, the Software blocks any AI invocation associated with that project from routing to a public-cloud inference path; such invocations are refused server-side unless you have configured a self-hosted / on-premise inference endpoint within your own boundary (a US-sovereign hosted inference option is planned but not yet available). You are responsible for designating ITAR-controlled projects accurately. Licensor is not a registered exporter of defense articles or defense services and the Software is not authorized for transfer of ITAR-controlled data to non-United-States persons through the Software's user interface.

13. General

Governing Law. This Agreement is governed by the laws of the State of Colorado, without regard to its conflict-of-laws principles. Any dispute arising out of or relating to this Agreement shall

be brought exclusively in the state or federal courts located in El Paso County, Colorado, and the parties consent to the personal jurisdiction of those courts.

Entire Agreement; Order of Precedence **[REVISED]**. This Agreement constitutes the entire agreement between the parties with respect to the Software and supersedes all prior or contemporaneous agreements, understandings, and communications, whether written or oral. Where the parties have executed a separate signed order form or master agreement covering the Software, that signed agreement governs and controls over any conflicting term of this Agreement.

Amendment **[REVISED]**. Licensors may update this Agreement from time to time by posting the amended terms at safetylabaero.com or giving notice through the Software. For any change that materially and adversely affects Licensee, Licensors will give at least thirty (30) days' advance notice, and the change will not take effect for Licensee before the start of Licensee's next renewal term; if Licensee objects in writing before the change would take effect, the then-current terms continue to govern through the end of the current paid term. Changes required by law or to address a security or operational emergency may take effect sooner. This Section does not permit Licensors to unilaterally amend a signed order form, statement of work, or negotiated agreement, which may be changed only by a writing signed by both parties.

Severability. If any provision of this Agreement is held to be unenforceable, the remaining provisions remain in full force and effect.

No Waiver. A party's failure to enforce any provision of this Agreement is not a waiver of that or any other provision.

Assignment **[REVISED]**. Neither party may assign this Agreement without the other party's prior written consent, except that either party may assign it in its entirety, on written notice and without consent, to a successor in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets. Any other attempted assignment is void. This Agreement binds and benefits the parties' permitted successors and assigns.

Force Majeure. Neither party is liable for any delay or failure to perform caused by circumstances beyond its reasonable control, including without limitation acts of God, natural disasters, war, terrorism, civil unrest, governmental action, network outages, or labor disputes.

Notices. Notices to Licensors shall be sent to waqas.nafees@safetylabaero.com or to such other address as Licensors may designate. Notices to Licensee shall be sent to the email address associated with Licensee's Account.

14. Source Code Escrow **[NEW]**

At Licensee's request (typically for Enterprise subscriptions), the parties will enter into a three-party escrow agreement with a recognized, independent escrow agent (for example, Iron Mountain or NCC Group). Licensors will deposit, and keep reasonably current, a copy of the source code, build instructions, and materials sufficient for a reasonably skilled developer to build, operate, and maintain the Software (the "Deposit Materials"). The escrow agent will release the Deposit Materials to Licensee — solely for Licensee's internal use to maintain and support its licensed use of the Software — upon the occurrence and continuation of a release

condition defined in the escrow agreement, which will include at least: (a) Licensor's dissolution, bankruptcy, insolvency, general assignment for the benefit of creditors, or cessation of ordinary business operations without a successor assuming this Agreement; or (b) Licensor's material, uncured failure to provide the maintenance or support it is contractually obligated to provide. Any released Deposit Materials remain Licensor's confidential information and licensed intellectual property and stay subject to the confidentiality and use restrictions of this Agreement. Allocation of escrow-agent fees will be set out in the applicable order form or escrow agreement.

15. Export Control; Cloud AI and Uploaded Reference Content [NEW]

This Section supplements Section 12. Certain Software features process content in Licensor's cloud environment or through a third-party language-model provider, including the conversational assistant made available in collaboration surfaces such as Microsoft Teams, and any reference standards, specifications, or other documents Licensee uploads to those features ("Uploaded Reference Content"). Licensee is solely responsible for ensuring that it does not submit, to any cloud-processed feature — including the assistant and Uploaded Reference Content — any technical data or defense article controlled under the ITAR (22 C.F.R. Parts 120–130), or any item whose export or release to a foreign person is restricted under the EAR, unless a compliant on-premise or segregated processing path has been configured and agreed in writing. The project-level ITAR control described in Section 12 (which blocks public-cloud AI for a project flagged ITAR-controlled) does not automatically extend to the assistant or to Uploaded Reference Content, and Licensee must not place controlled data in those channels. The cloud assistant is provided for questions about publicly available standards and methods and treats Uploaded Reference Content as the customer's own, non-controlled reference material. Licensee designates and is responsible for identifying controlled content; on request, Licensor will work with Licensee to configure a controlled-handling path where one is available. Licensor is not a registered exporter of defense articles or defense services, and no feature is authorized for the transfer of ITAR-controlled data to non-U.S. persons.

Contact

Safety Lab Aero, Inc. Attention: Muhammad Waqas Nafees, Chief Executive Officer
waqas.nafees@safetylabaero.com <https://safetylabaero.com>

By creating an account, signing in, or otherwise using the Software, you acknowledge that you have read, understood, and agreed to be bound by this Agreement.